No. 22-2830

IN THE UNITED STATES COURT OF APPEALS FOR THE SEVENTH CIRCUIT

Norberto Torres

Plaintiff-Appellant,

v.

Kent Brookman, *et al.*

Defendants-Appellees.

On Appeal from the United States District Court for the Southern District of Illinois

No. 3:19-cv-00248; Hon. Stephen P. McGlynn

BRIEF OF APPELLANT

Samuel Weiss
RIGHTS BEHIND BARS
416 Florida Ave., N.W.
Washington, DC 20001
(202) 455-4399

Matthew L. Farley
ARNOLD & PORTER KAYE SCHOLER LLP
601 Massachusetts Ave., N.W.
Washington, DC 20001
(202) 942-5000

Robert Reeves Anderson
ARNOLD & PORTER KAYE SCHOLER LLP
1144 Fifteenth St., Suite 3100
Denver, CO 80202
(202) 942-1000

Counsel for Norberto Torres

TABLE OF CONTENTS

	Page
TABLE OF AUTHORITIES	iii
JURISDICTIONAL STATEMENT	1
ISSUE PRESENTED	1
INTRODUCTION	2
STATEMENT OF THE CASE	3
I. Factual Background	3
A. Mr. Torres receives the first disciplinary report, which is promptly expunged	3
B. Mr. Torres is confined in a moldy, contaminated cell for three months	4
II. Proceedings Below	5
SUMMARY OF ARGUMENT	5
STANDARD OF REVIEW	6
ARGUMENT	6
I. The district court's summary judgment opinion misstated the law and misapplied the summary judgment standard	7
A. The district court erred by assessing the amount of time that Mr. Torres spent in segregation relative to his sentence	8
B. The district court further erred by requiring Mr. Torres to prove physical or mental harm because of his confinement	10
CONCLUSION	10
CERTIFICATE OF COMPLIANCE	12
CERTIFICATE OF SERVICE	12

TABLE OF AUTHORITIES

Cases:	**Page(s)**
Farmer v. Brennan, 511 U.S. 825 (1994)	10
Gillis v. Litscher, 468 F.3d 488 (7th Cir. 2006)	7
Hardaway v. Meyerhoff, 734 F.3d 740 (7th Cir. 2013)	3, 7, 8
Hoskins v. Lenear, 395 F.3d 372 (7th Cir. 2005)	8
Isby v. Brown, 856 F.3d 508 (7th Cir. 2018)	2
Kervin v. Barnes, 787 F.3d 833 (7th Cir. 2015)	8
Lekas v. Briley, 405 F.3d 602 (7th Cir. 2005)	8
Lisle v. Welborn, 933 F.3d 705 (7th Cir. 2019)	5, 6, 8
Marion v. Columbia, 559 F.3d 693 (7th Cir. 2009)	7, 8
Sandin v. Conner, 515 U.S. 472 (1995)	2, 7
Thomas v. Ramos, 130 F.3d 754 (7th Cir. 1997)	8, 9

Townsend v. Fuchs,
522 F.3d 765 (7th Cir. 2008) 6, 8, 10

Wilkinson v. Austin,
545 U.S. 209 (2005) 6

Williams v. Ramos,
71 F.3d 1246 (7th Cir. 1995) 9

Constitutional Provisions:

U.S. Const. amend. VIII 7, 10

Statutes:

28 U.S.C. § 1291 1

28 U.S.C. § 1331 1

42 U.S.C. § 1983 1

Rules:

Fed. R. App. P. 4(c) 1

JURISDICTIONAL STATEMENT

Plaintiff-appellant sued Defendants-appellees under 42 U.S.C. § 1983 for violating his federal rights under the Fourteenth Amendment to the United States Constitution. The district court had subject-matter jurisdiction under 28 U.S.C. § 1331. The district court entered final judgment on September 15, 2022. SA.11.[1] Appellant timely filed a notice of appeal under Federal Rule of Appellate Procedure 4(c) on October 14, 2022, and the notice of appeal was docketed on October 17, 2022. A.181-83. This Court has jurisdiction under 28 U.S.C. § 1291.

ISSUE PRESENTED

Whether the district court erred in concluding that Mr. Torres's months-long segregative confinement in a cell riddled with feces, mold, mildew, and insects did not constitute an atypical and significant hardship compared to ordinary prison life sufficient to trigger procedural protections under the Due Process Clause.

[1]Citations to SA.### are to the Short Appendix appended to this brief. Citations to A.### are to the separately bound Appendix.

INTRODUCTION

Appellant Norberto Torres's due process rights were violated when Appellees Brookman and Hart ignored his requests to conduct a procedurally proper disciplinary hearing and then sentenced him to three months of segregation in inhumane conditions. Mr. Torres spent 90 days in a cell covered in mildew and mold and infested with insects. Each time the cell's toilet was flushed, it exuded human waste onto the cell's floor. Mr. Torres filed suit under Section 1983, alleging that Brookman and Hart violated his due process rights by sentencing him to such conditions without following proper process. The district court concluded that these conditions were not "atypical" or "significant" enough compared to ordinary prison life to substantiate a claim to procedural due process. That conclusion was incorrect, and the district court's decision should be reversed.

Prisoners have a constitutional right to due process before they can be deprived of "life, liberty, and property." *Isby v. Brown*, 856 F.3d 508, 524 (7th Cir. 2018). Specifically, prisoners retain a liberty interest in avoiding conditions that "impose[] atypical and significant hardship on the inmate in relation to the ordinary incidents of prison life." *Sandin v. Conner*, 515 U.S. 472, 484 (1995). Prisoners alleging a due process violation, therefore, must first show that correctional officers did not follow proper process in sentencing them to segregation, and second, that the conditions of that confinement constitute an "atypical and significant hardship." On

summary judgment, the district court must consider "the combined import of the duration of the segregative confinement and the conditions endured." *Hardaway v. Meyerhoff*, 734 F.3d 740, 743 (7th Cir. 2013).

STATEMENT OF THE CASE

I. Factual Background

Mr. Torres is serving a 60-year sentence in the Illinois Department of Corrections. Throughout the events of this case, Mr. Torres was imprisoned at Menard Correctional Center in Menard, Illinois. Defendants Brookman and Hart both served on the Adjustment Committee at Menard, responsible for conducting disciplinary hearings and sentencing prisoners to extra punishments for any infractions.

A. Mr. Torres receives the first disciplinary report, which is promptly expunged

On March 13, 2017, Mr. Torres received Inmate Disciplinary Report Number 201700365/1-MEN ("the 365 Ticket"). A.142-43. While transferring a different prisoner to another facility, the Department of Corrections allegedly discovered a "Latin Folk questionnaire" filled out by Mr. Torres. A.142-43. Defendants Brookman and Hart convened a hearing for the 365 Ticket on March 15, 2017. A.142. Mr. Torres requested a witness for this hearing, but Brookman and Hart did not produce him. A.177. After a hearing that lasted no more than 15 minutes,

A.104, Defendants expunged the 365 Ticket. A.142.

B. Mr. Torres is confined in a moldy, contaminated cell for three months

Being placed in segregation significantly restricted Mr. Torres's life. He was not permitted to watch television, access a phone, or possess electronics. A.095-96. When Mr. Torres was placed in segregation, "it was three or four days until" he was provided with a bed. A.120. Unfortunately, his conditions in segregation did not improve after that. His cell toilet was polluted with insects, mildew, and rust: "[We were] breathing in rust." A.120. This backflush included feces going into his cell each time the toilet was flushed. A.011. Mr. Torres informed the warden of these conditions and asked for cleaning supplies to clean the cell himself. A.011. Mr. Torres was never provided any cleaning supplies, forcing him to endure these conditions for the entirety of his segregation. A.011.

II. Proceedings Below

Mr. Torres brought this action pro se on February 28, 2019. A.005. On preliminary review, the district court divided Mr. Torres's claims into two counts: (1) a Fourteenth Amendment procedural due process claim against Defendants Brookman and Hart; and (2) an Eighth Amendment claim against Chief Administrative Officer Lashbrook for cruel and unusual punishment. The district court determined that Mr. Torres's three months of confinement in inhumane conditions was not an "atypical or significant hardship" because "a three-month period in punitive segregation is a miniscule part of Plaintiff's imprisonment." SA.009 (quoting *Lisle*, 933 F.3d at 721).

Mr. Torres timely appealed. A.181-83.

SUMMARY OF ARGUMENT

This Court should reverse because the district court misapplied the standard at summary judgment by failing to construe the evidence in the light most favorable to Mr. Torres (the non-movant below) and erred in its conclusion that Mr. Torres failed to offer evidence that his conditions in segregation were atypical and significant. The district court committed three legal errors, each of which justifies reversal. First, the district court incorrectly relied on the length of Mr. Torres's sentence to conclude that his 90 days in segregation could not amount to an atypical and significant hardship. Second, the district court improperly imported an element from

an Eighth Amendment conditions of confinement claim to Mr. Torres's Fourteenth Amendment Due Process claim by faulting him for not putting forth evidence of a substantial risk of harm. Third, the district court did not construe all facts in a light most favorable to Mr. Torres and ignored undisputed material facts in the record.

STANDARD OF REVIEW

This Court reviews de novo a district court's grant of summary judgment. All facts must be construed in a light favorable to Mr. Torres, drawing all reasonable inferences in his favor. *Lisle*, 933 F.3d at 716.

ARGUMENT

Because Brookman and Hart violated Mr. Torres's due process rights at his second hearing, Mr. Torres was confined in a cell for three months that was infested with mold, mildew, insects, and rust, and consistently flooded with sewage water containing human waste. These conditions were "atypical and significant" under Seventh Circuit precedent and implicate Mr. Torres's liberty interests.

The Constitution does not always "create an interest in avoiding transfer within a correctional facility." *Townsend v. Fuchs*, 522 F.3d 765, 771 (7th Cir. 2008) (citing *Wilkinson v. Austin*, 545 U.S. 209, 222 (2005)). The Supreme Court has determined, however, that the Fourteenth Amendment provides to inmates a liberty interest in avoiding placement in more restrictive conditions, such as segregation, when those conditions pose an atypical and significant hardship when compared to

the ordinary incidents of prison life. *Id.* (citing *Sandin*, 515 U.S. at 484). This "atypical and significant hardship" does not need to rise to the level of an Eighth Amendment violation to "trigger[] procedural requirements." *Gillis v. Litscher*, 468 F.3d 488 (7th Cir. 2006). Determining whether conditions rise to this level is a "fact intensive inquiry," and is therefore ultimately a fact question for the jury. *Gillis*, 468 F.3d at 492. In doing so, courts must look at "the combined import of the duration of the segregative confinement and the conditions endured." *Marion v. Columbia*, 559 F.3d 693, 697 (7th Cir. 2009). Neither is dispositive, as "relatively short terms of segregation" subject to "exceptionally harsh conditions" may "give rise to a prisoner's liberty interest." *Hardaway*, 734 F.3d at 743.

I. The district court's summary judgment opinion misstated the law and misapplied the summary judgment standard

A. The district court erred by assessing the amount of time that Mr. Torres spent in segregation relative to his sentence

The district court's assertion that "Courts have dismissed due process claims based on relatively short periods of disciplinary segregation without inquiry into the specific conditions of confinement," misstates the law on segregative confinement claims. SA.008-09 (citing *Marion*, 559 F.3d at 698; *Townsend*, 522 F.3d at 766; *Hoskins v. Lenear*, 395 F.3d 372, 374-75 (7th Cir. 2005); *Thomas v. Ramos*, 130 F.3d 754, 761 (7th Cir. 1997)). This Court has made clear that district courts must examine "the combined import of the duration of the segregative confinement and the conditions endured." *Hardaway*, 734 F.3d at 743 (first emphasis added). This Court has "found that, depending on the conditions of confinement and whether there were any additional punishments, a period of segregation considerably shorter than four months may" constitute an atypical and significant hardship. *Lisle*, 933 F.3d at 721 (citing *Kervin v. Barnes*, 787 F.3d 833, 836 (7th Cir. 2015)).

In *Marion*, while 240 days of segregation was insufficient on its own to be an "atypical and significant" condition, the case was remanded for further fact finding into the conditions of that confinement. *Id.* at 698-99. In *Townsend*, the holding turned not on the fact that the plaintiff was in segregation for only 59 days, but rather on the fact that the segregative confinement was administrative rather than disciplinary. *Lekas v. Briley*, 405 F.3d 602, 608-09 (7th Cir. 2005). In *Thomas*, the Court's conclusion explicitly depended on the combination of the duration and

conditions of disciplinary segregation. *Thomas*, 130 F.3d at 762 (quoting *Williams v. Ramos*, 71 F.3d 1246, 1249 (7th Cir. 1995)).

The district court further erred in considering the length of Mr. Torres's segregative confinement in relation to the length of his underlying sentence. Neither the Supreme Court nor this Court has ever held that the fact-intensive inquiry that goes into consideration of liberty interests includes the length of the plaintiff's sentence as a variable. A prisoner serving a 60-year sentence has no less of a constitutional liberty interest than someone serving a six-day sentence. Whether or not conditions rise to the level of atypical and significant does not depend on the length of a prisoner's sentence. To the extent that the district court's opinion relied on its assessment that "[v]iewed in the context of Plaintiff's 60-year sentence, a three-month period in punitive segregation is a miniscule part of Plaintiff's imprisonment," SA.009, it cannot stand.

B. The district court further erred by requiring Mr. Torres to prove physical or mental harm because of his confinement

The district court again misconstrued the law when it faulted Mr. Torres for not alleging "that he suffered physical or mental harm or substantial risk to his health because of his three-month confinement in the cell." SA.009. There is no requirement that plaintiffs allege any physical or mental harm because of confinement in his cell to plead a violation of his due process rights. To be sure, claims challenging the conditions of confinement under the Eighth Amendment require showing that the conditions exposed an inmate to "a substantial risk of serious harm." *Townsend*, 522 F.3d at 773 (citing *Farmer v. Brennan*, 511 U.S. 825, 847 (1994)). But claims alleging that a violation of a prisoner's due process rights resulted in an atypical and significant hardship have no such requirement.

CONCLUSION

Mr. Torres respectfully asks the Court to reverse the judgment below.

Respectfully submitted,

s/ Matthew L. Farley
MATTHEW L. FARLEY
ARNOLD & PORTER KAYE SCHOLER LLP
601 Massachusetts Ave., N.W.,
Washington, DC 20001
(202) 942-5000
matthew.farley@arnoldporter.com

March 21, 2024

CERTIFICATE OF COMPLIANCE

The foregoing brief complies with the type-volume limitation of Circuit Rule 32(c). The brief contains 1,706 words, excluding those parts of the brief exempted by Federal Rule of Appellate Procedure 32(f).

This brief complies with the typeface and type-style requirements of Federal Rule of Appellate Procedure 32(a)(5)-(6) and Circuit Rule 32(b) because this brief has been prepared in a proportionally spaced typeface using LaTeX in Times New Roman 14-point font.

s/ Matthew L. Farley	March 21, 2024
Signature	Date

CERTIFICATE OF SERVICE

Pursuant to Federal Rule of Appellate Procedure 25, I hereby certify that on March 22, 2024, I electronically filed the foregoing Brief of Appellant via the Court's CM/ECF system, and service was accomplished on counsel of record by that means.

s/ Matthew L. Farley	March 22, 2024
Signature	Date